

District-Cumilla.

Md. Al-Amin alias Zibrail and another
.....Accused-petitioners.

-Versus-

The State

.....Opposite-party.

Mr. Md. Murad Sarwer Bhuiyan, Advocate

.....For the Accused-petitioners.

Mr. Md. Saiefuddin Khaled, D.A.G with

Mr. Md. Asaduzzaman, A.A.G with

Mrs. Afifa Begum Swapna, A.A.G and

Mr. Sarwar Akhtar Masud, A.A.G,

.....For the State opposite-party.

Present:

Mr. Justice Md. Nazrul Islam Talukder.

And

Mr. Justice Kazi Ebadoth Hossain

29.01.2024.

Heard the learned Advocate for the
accused-petitioners and the learned Deputy
Attorney-General for the State opposite-party
and perused the application along with
prosecution materials annexed therewith.

Records need not be called for.

Let a Rule be issued calling upon the opposite-party to show cause as to why the accused-petitioners should not be enlarged on bail in Brahmanpara Police Station Case No.07 dated 10.01.2024 corresponding to G.R Case No.07 of 2024 under Serial No.10(Ka) of the table appended to Sections 36(1), 38 of the Madokdrobyo Niontron Ain, 2018 now pending in the Court of learned Chief Judicial Magistrate, Cumilla and/or pass such other or further order or orders as to this Court may seem fit and proper.

The Rule is made returnable within 4(four) weeks from date.

Subject to disposal of the Rule, let the accused-petitioners namely 1) Md. Al-Amin alias Zibrail son of Md. Zamshed Mia, 2) Md. Hashim son of Chalu Mia enlarged on ad-interim bail in the above mentioned case for a period of 6(six) months from date, subject to furnishing adequate bail bond to the satisfaction of the learned Chief Judicial Magistrate, Cumilla.

The learned Judge of the Court below shall be at liberty to cancel the bail of the accused-petitioners if they misuses the privilege of bail in any manner.

However, the accused-petitioners shall put in 2(two) sets of requisites within 7 (seven) days, for service of notice of the Rule upon the opposite-party in normal course as well as by registered post with A/D as per HCD Rules.

Office shall not issue any certified copy of this order to the petitioners unless requisites are put in.